

26STCV10851 26STCV10851

County: los-angeles

Division: Civil Law and Motion

Department: 413

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Case Number: 26STCV10851 Hearing Date: August 28, 2026 Dept: 413

TENTATIVE RULING

Hearing

Date: August 28, 2026

James W. Hunter v. A. George Glasco, APLC, Case No. 26STCV10851

Proceeding: Plaintiff's Motion for

Order Determining that Defendants' CIV-141 Automatic Extension Declarations

Were Unsupported by any Meet-and-Confer Communication

Ruling: Plaintiff's Motion is denied.

Defendant asks

the Court to determine that Defendants should not have had the benefit of a 30-day extension to file a demurrer, because the Declaration of Demurring or Moving Party in Support of Automatic Extension filed on May 7, 2026, by defendant George A. Glasco erroneously stated that he had requested that Plaintiff meet and confer, and Plaintiff had not responded to the request. Glasco filed an Amended Declaration on May 12, 2026, explaining that he did not realize that he had not sent the email on May 7, 2026, finding it in the email "Drafts" folder after he received communication from Plaintiff that he had not received the request.

Plaintiff

offers no authority for the Court to make a determination at this time as to whether an extension should have been effect. He may renew these arguments with his opposition to the Demurrer that Defendants filed. It appears to the Court that the

error was inadvertent. Moreover, a responsive pleading is now on file, and the Court would be reluctant to focus on this alleged procedural problem that Plaintiff has not shown caused him prejudice, where the current state of the pleadings presents issues regarding the pleadings on the merits.

Plaintiff

has also not offered any authority for the order he is asking to compel Defendants to produce documents he requested in an email to Mr. Glasco.